

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 2984

By: Gise and **Pae** of the House

and

Reinhardt of the Senate

11 COMMITTEE SUBSTITUTE

12 An Act relating to poor persons; directing the
13 Department of Human Services to publish annual
14 report; providing information the report shall
15 contain; authorizing the Department to include
16 contextual information; directing the Department to
17 submit the report and make report publicly available
18 on website; providing that the provisions shall be
19 carried out within existing appropriations; providing
20 that provisions shall not require department to
21 create new data systems or hire additional employees;
22 directing the Department to make reasonable efforts;
23 providing for codification; and providing an
24 effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 271 of Title 56, unless there is
3 created a duplication in numbering, reads as follows:

4 A. The Department of Human Services shall, using existing
5 resources and data already collected by the Department, compile and
6 publish an annual report regarding program integrity and payment
7 accuracy within the child care subsidy program administered pursuant
8 to Title 56 of the Oklahoma Statutes and Chapter 40 of Title 340 of
9 the Oklahoma Administrative Code.

10 B. The purpose of the report shall be to promote
11 accountability, identify potential improper payments, support high-
12 quality child care providers, and ensure public funds are directed
13 to services actually delivered to Oklahoma children and working
14 families.

15 C. The report shall, to the extent practicable using existing
16 data systems, include:

17 1. The payment error rate for the child care subsidy program,
18 if such rate is calculated by the Department or required by federal
19 reporting;

20 2. The total amount of overpayments identified during the
21 preceding fiscal year, including those associated with attendance
22 reporting discrepancies when such information is available;

23 3. The total amount of overpayments recovered during the
24 preceding fiscal year;

1 4. The number of provider investigations completed related to
2 the child care subsidy program;

3 5. The number of adverse actions taken against providers,
4 including suspensions, terminations, or disqualifications;

5 6. Any trends or risk factors identified by the Department
6 related to improper payments, including patterns that may indicate
7 inaccurate attendance reporting or other program vulnerabilities;

8 7. A summary of education, outreach, or technical assistance
9 provided by the Department to help child care providers maintain
10 compliance and avoid improper payments; and

11 8. The number of current daycare facilities to date, child care
12 capacity, the number of daycare facilities losses, and child care
13 capacity loss each year.

14 D. The Department may include any additional contextual
15 information necessary to accurately interpret the data provided in
16 the report and to highlight the performance of providers operating
17 in good faith compliance with program requirements.

18 E. The Department shall submit the report to the Governor, the
19 Speaker of the Oklahoma House of Representatives, and the President
20 Pro Tempore of the Oklahoma Senate no later than November 1 of each
21 year and shall make the report publicly available on the
22 Department's website.
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1 F. The requirements of this section shall be carried out within
2 existing appropriations and shall not require the Department to
3 create new data systems or hire additional full-time employees.

4 G. As part of the annual report required by this section, the
5 Department shall, using existing licensing and administrative data
6 to the extent available, include information regarding the supply
7 and capacity of child care providers in this state, including:

8 1. The total number of licensed child care facilities operating
9 in the state during the reporting period;

10 2. The estimated licensed child care capacity statewide and by
11 region, to the extent such information is available;

12 3. The number of licensed child care facilities that opened
13 during the preceding fiscal year;

14 4. The number of licensed child care facilities that closed
15 during the preceding fiscal year;

16 5. The estimated reduction in licensed child care capacity
17 associated with such closures, to the extent practicable; and

18 6. A summary of information obtained by the Department
19 regarding the primary reasons for provider closures.

20 H. The Department shall make reasonable efforts, within
21 existing resources, to contact providers that have closed during the
22 reporting period to request voluntary feedback regarding the reasons
23 for closure. Participation by former providers shall be voluntary,
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1 and nothing in this subsection shall be construed to require the
2 Department to obtain responses in every case.

3 I. Nothing in this section shall be construed to require the
4 creation of new data systems or mandatory surveys of providers.

5 SECTION 2. This act shall become effective November 1, 2026.

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7 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
8 OVERSIGHT, dated 03/05/2026 - DO PASS, As Amended and Coauthored.

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